

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Patry	Team: Team # 7	CCRB Case #: 200708616	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/17/2007 10:54 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/17/2008	Precinct: 44		
Date/Time CV Reported Fri, 06/15/2007 1:09 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Fri, 06/15/2007 1:09 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Marcos Sanchez	04155	931134	044 PCT
2. LT Philip Rivera	00000	916539	044 PCT
3. LT Joseph Lyons	00000	906678	044 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Korabel	03871	930498	044 PCT
2. POM Jose Reyna	12126	942422	044 PCT
3. POM Robert Meyer	17234	898076	044 PCT
4. SGT Michael Gaudio	01601	925337	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Joseph Lyons	Force: Lt. Joseph Lyons' vehicle struck the vehicle in which § 87(2)(b) was an occupant.	A . Unfounded
B . LT Philip Rivera	Force: Lt. Philip Rivera pointed his gun at § 87(2)(b)	B . Exonerated
C . LT Philip Rivera	Force: Lt. Philip Rivera used physical force against § 87(2)(b)	C . Exonerated
D . POM Marcos Sanchez	Force: PO Marcos Sanchez used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b)	E . Unfounded
F . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	F . Unfounded
G . An officer	Force: An officer struck § 87(2)(b) with a gun.	G . Unfounded

Synopsis

On March 17, 2007, at approximately 10:43 PM, § 87(2)(b) walked by a red Toyota Land Cruiser that was parked with its keys in the ignition on § 87(2)(b) and § 87(2)(b). § 87(2)(b) stole the vehicle and placed his § 87(2)(b) daughter into the back car seat. Several minutes later, the owner of the car, § 87(2)(b), noticed his car was stolen and called the police. He reported that his car was stolen and told the police the make, model, and license plate of his car. Lt. Joseph Lyons, Lt. Philip Rivera, and PO Marcos Sanchez, who were assigned to a conditions team that was on patrol at § 87(2)(b) and § 87(2)(b) heard the description over the radio and observed § 87(2)(b) stopped at that intersection facing westbound on § 87(2)(b). Lt. Lyons stopped his vehicle behind the Toyota Land Cruiser and Lt. Lyons and PO Sanchez exited the vehicle. § 87(2)(b) alleged that Lt. Lyons drove his vehicle into the back of the Land Cruiser, which caused it to crash into a parked vehicle (**Allegation A**). PO Sanchez identified himself as a police officer and told § 87(2)(b) to stop. § 87(2)(b) veered to the left, crossed the double yellow line, took a left through the red-light, and drove northbound on § 87(2)(b). Lt. Rivera and PO Sanchez got back into their vehicle and Lt. Lyons pursued § 87(2)(b). PO Sanchez predicted that § 87(2)(b) was driving away from the officers at approximately 50 to 60 MPH. Because it had snowed recently, the Land Cruiser was fishtailing across the double yellow line into the southbound lane. When § 87(2)(b) got to the intersection of § 87(2)(b) and § 87(2)(b) he lost control of the Toyota Land Cruiser and crashed into the cars on the southwest corner of the intersection, which resulted in a five car pile up. § 87(2)(b) exited his vehicle and ran to the back of his car and reached into the vehicle. As he did this, Lt. Lyons drove towards the intersection and PO Sanchez exited the vehicle. § 87(2)(b) noticed PO Sanchez so he ran northbound into an alleyway. Lt. Lyons and Lt. Rivera drove northbound on § 87(2)(b) to cut § 87(2)(b) off and Lt. Rivera exited his vehicle, pulled out his gun, pointed it at § 87(2)(b) and told him to show his hands (**Allegation B**). § 87(2)(b) continued to run and started climbing a fence. When § 87(2)(b) got to the top of the fence, Lt. Rivera grabbed § 87(2)(b) by the right leg and he started kicking at Lt. Rivera with his left leg. At this point, PO Sanchez caught up and grabbed § 87(2)(b) left leg. Lt. Rivera and PO Sanchez pulled § 87(2)(b) off the fence, which caused his body to fall chest first, hit the stone wall, and drop to the ground. § 87(2)(b) alleged that Lt. Rivera and PO Sanchez kicked him five times and punch him five times in the back, rib cage, and buttocks. § 87(2)(b) also alleged that the officers dragged him along the ground, which resulted in an injury to his knee and a cut to this hand which required four stitches (**Allegation C and D**). When he got to the ground, § 87(2)(b) began to kick and punch at Lt. Rivera and PO Sanchez. § 87(2)(b) alleged that an officer said, “Stupid motherfucker, I should kill you,” but he was unable to see the officer because he was covering his face (**Allegations E and F**). § 87(2)(b) alleged that an officer then struck him in the face with a gun (**Allegation G**). Lt. Rivera and PO Sanchez placed § 87(2)(b) into handcuffs and backup units arrived and § 87(2)(b) was escorted out of the alleyway by Lt. Rivera and some of the backup officers.

PO Sanchez responded back to the scene of the accident and § 87(2)(b) § 87(2)(b) daughter was found. PO Sanchez searched the car and saw that there was blood on the steering wheel and noticed that the air bags did not deploy. § 87(2)(b) was brought to the stationhouse. At the stationhouse he complained about injuries so he was brought to § 87(2)(b).

It is recommended that Allegation A be unfounded § 87(2)(g)

§ 87(2)(g) It is recommended that allegations B, C, and D be **exonerated** § 87(2)(g) It is recommended that allegations E, F, and G be **unfounded** § 87(2)(g)

This case was reassigned to Investigator Matthew Patry on November 26, 2007, due to Investigator Debra Cleaver’s departure from this agency.

Summary of Complaint

On June 15, 2007, § 87(2)(b) filed a complaint with the CCRB via the mail. § 87(2)(b) provided the following statement at Rikers Island on July 26, 2007 (Encl. 6A-E).

§ 87(2)(b) lives with his mother and grandmother at § 87(2)(b) Bronx, NY. § 87(2)(b) has a daughter. His daughter was at his aunt's house (§ 87(2)(b)) on March 17, 2007. § 87(2)(b) lives at § 87(2)(b). Around 9 or 10 PM, § 87(2)(b) decided to go pick his daughter up and bring her back to his house. § 87(2)(b) ran into § 87(2)(b) an acquaintance from the neighborhood, on § 87(2)(b) and § 87(2)(b) does not know § 87(2)(b) last name. § 87(2)(b) knew, however, that § 87(2)(b) sometimes lends his car out. § 87(2)(b) drives a burgundy Toyota Land Cruiser. Since it was cold out, § 87(2)(b) asked § 87(2)(b) if he could borrow § 87(2)(b) truck to pick up his daughter. § 87(2)(b) wanted \$50, which § 87(2)(b) refused to pay. § 87(2)(b) relented and let § 87(2)(b) borrow his truck anyway. § 87(2)(b) handed § 87(2)(b) the car keys to his car. § 87(2)(b) and § 87(2)(b) did not arrange for an exact time for § 87(2)(b) to return the vehicle. § 87(2)(b) just told § 87(2)(b) he would be back soon. § 87(2)(b) did not steal § 87(2)(b) vehicle. There vehicle already had a car seat in the backseat of the vehicle, since § 87(2)(b) has kids.

§ 87(2)(b) drove to § 87(2)(b) house, hung out for about five minutes, took his daughter and started driving home. § 87(2)(b) drove along § 87(2)(b), which is a two way street, and stopped at a red-light at an unknown cross street. An unmarked black car pulled up behind § 87(2)(b) § 87(2)(b) did not know this was a police car and did not know the officers wanted him to pull over. He did not see any police lights, hear any police sirens, or hear any instructions issued via loudspeaker. As he started to drive, § 87(2)(b) felt the black car hit his rear bumper. § 87(2)(b) lost control of his vehicle and swerved to the left. § 87(2)(b) veered into the oncoming lane and hit a parked vehicle head on. § 87(2)(b) vehicle came to rest with the driver's side against the curb, and the Land Cruiser protruding into the intersection.

§ 87(2)(b) was wearing a seatbelt and was not hurt. § 87(2)(b) unbuckled his belt and immediately exited. § 87(2)(b). He initially stated that he exited and began to walk away from the car. § 87(2)(b) § 87(2)(g) said that he did not walk away from the car, but towards the back door, to get his daughter out of the backseat.

§ 87(2)(b) still did not know that the people in the other car were officers. § 87(2)(b) tried to open the back door to get to his daughter, but the door was locked. § 87(2)(b) saw a plainclothes male exit the other car and move quickly toward him. An officer, identified by the investigation as Lt. Rivera, was pointing his gun at § 87(2)(b). The officer yelled, "Stop or we're going to shoot." The officer was standing approximately 12 feet away when he said this.

§ 87(2)(b) immediately froze. He assumed at this point that the man was a police officer. The officer ran up behind § 87(2)(b) and hit § 87(2)(b) with his elbow in § 87(2)(b) upper right back. § 87(2)(b) fell forward onto his hands and knees. Two other officers approached. § 87(2)(b) did not see if these officers had their guns out. § 87(2)(b) stated that three officers beat him. It was determined by the investigation that Lt. Rivera and PO Sanchez were the only officers who were involved in stopping § 87(2)(b) Lt. Rivera and PO Sanchez kicked § 87(2)(b) about 5 times and punched him about 5 times. The blows landed on § 87(2)(b) back, rib cage, and butt. The officers pulled on his legs and on his clothes. The officers appeared to be trying to knock § 87(2)(b) onto his stomach. § 87(2)(b) tried to crawl away from the officers and he was dragged along the ground, which resulted in injuries to his hands and knees (one of the injuries to his hand required four stitches). § 87(2)(b) explained that he was trying to grab onto the ground to keep the officers from pulling his hands behind his back. After one kick to his stomach/side, § 87(2)(b) fell flat onto his stomach. He continued to try to grip the ground so the officers couldn't handcuff him. Lt. Rivera and PO Sanchez kept hitting him and trying to pull his arms behind his back. § 87(2)(b) gave up trying to hold the ground and cradled his head in his arms, so the blows wouldn't land on his face. One of the officers, § 87(2)(b) did not know which, said, "Stupid motherfucker. I should kill you." The officers eventually pulled his arms behind his back and handcuffed him. § 87(2)(b) didn't kick, punch, spit at, scratch, or § 87(2)(b) injure the officers. The officers started to stand § 87(2)(b) up. An officer that § 87(2)(b)

§ 87(2) described as a white male, shorter than 5'10" with gray or blue eyes was standing to § 87(2)(b) right when he was hit on the left eyebrow with a gun, although he did not see who hit him. § 87(2)(g)

Two female officers transported § 87(2) to the 44th Precinct stationhouse. The male officers met the marked RMP at the curb and walked § 87(2) into the precinct. § 87(2) told the officers that he needed to go to the hospital. § 87(2) was bleeding from the cut on his left eyebrow. The male officers logged his arrest at the front desk and one of the female officers searched his pockets. The officer recovered some marijuana.

The officers did not call for EMTs until § 87(2) passed out in the holding cell. § 87(2) woke up as he was being strapped to the EMT gurney. The EMTs took § 87(2) to § 87(2)(b). § 87(2) could not recall if any of the officers were there with him. § 87(2)(b) right knee was also bruised, as was his left hand and his rib cage. § 87(2) showed the investigator all of his injuries. There were two lateral bruises (possibly healed lacerations) on the left side of § 87(2)(b) abdomen. The bruises were parallel to each other. § 87(2) was asked how he obtained the bruises. He said from being kicked and dragged on the ground.

§ 87(2) was released from § 87(2)(b) around § 87(2)(b) and taken back to the 44th Precinct. He was later taken to Central Booking where he was charged § 87(2)(b)

§ 87(2)(b) § 87(2)(b) Arrest Photo (Encl. 6D):

§ 87(2) had what appears to have been laceration across his left eye brow and abrasions to his forehead, right cheek, and left cheek.

Results of Investigation

Officer Identification:

§ 87(2)(g)

Officer Statements:

On February 22, 2008, Lt. Philip Rivera provided the following statement to the CCRB (Encl. 8A-C):

On March 17, 2007, Lt. Rivera worked a tour of 17:45 by 02:30 and he was assigned to supervising conditions (anti-crime). Lt. Rivera was working with Lt. Joe Lyons and PO Marcos Sanchez. Lt. Rivera was in plainclothes and he was assigned to a burgundy Chevy Impala.

Lt. Rivera had no memo book entries regarding this incident.

On March 17, 2007, at approximately 10:54 PM, Lt. Rivera, Lt. Lyons and PO Sanchez were on patrol, traveling eastbound on § 87(2)(b) when they received a radio run, for grand larceny auto in the past. The vehicle stolen was a burgundy Toyota Land Cruiser. The dispatcher provided the license plate number over the radio as well. After the call went over the radio, the officers identified a vehicle that fit the description traveling westbound on § 87(2)(b). Lt. Lyons drove by the Land Cruiser, did a U-Turn, and pulled up behind the vehicle, which was stopped at the intersection of § 87(2)(b) and § 87(2)(b). Lt. Rivera said to PO Sanchez, "He's stopped at the red light. Let's get out there and see if we can stop this guy." Lt. Rivera exited the front passenger seat and PO Sanchez exited the back seat. Lt. Rivera approached the passenger side of the Land Cruiser and PO Sanchez approached the driver's side of the Land Cruiser. Lt. Rivera, who was wearing his shield around his neck, and PO Sanchez, who also had his shield out, said to the driver, identified by the investigation as § 87(2)(b) "Police, turn off the

vehicle.” § 87(2)(b) saw the officers and he drove through a red light at the intersection of § 87(2)(b) and § 87(2)(b) took a right, and drove northbound onto § 87(2)(b). Lt. Rivera ran back to the car and PO Sanchez pursued § 87(2)(b) on foot.

Lt. Rivera stated that it was snowing that day so there was a lot of ice and snow on § 87(2)(b) (two way street) and the surrounding streets. Lt. Rivera and Lt. Lyons tailed the Land Cruiser in their vehicle. § 87(2)(b) was traveling at a high rate of speed, which caused him to fishtail into the southbound lane of traffic. Lt. Rivera was not able to approximate how fast § 87(2)(b) was driving. § 87(2)(b) drove two blocks north on § 87(2)(b) where there was a car where § 87(2)(b) intersects with § 87(2)(b). There was a car traveling northbound stopped at a red-light, so § 87(2)(b) swerved the Land Cruiser to the left, around the car, lost control of his vehicle, and crashed into a row of cars parked on the southwest corner of § 87(2)(b) and § 87(2)(b). The Land Cruiser impacted the initial car with such force that it created a three car pile up, with two cars parked behind the car on the corner. Lt. Rivera stated when the Land Cruiser came to rest, its wheels were on top of the car that was initially struck. Lt. Rivera made no mention of his vehicle striking the Land Cruiser. § 87(2)(b) exited the Land Cruiser walked to the back driver’s side door and he reached in for something. Lt. Rivera was not able to see the front side of § 87(2)(b) body so he could not tell if he had any injuries. § 87(2)(b) then pulled his hand out of the car, but Lt. Rivera was unable to see what § 87(2)(b) had in his hand. § 87(2)(b) ran northbound on § 87(2)(b). Lt. Lyons drove northbound and PO Sanchez pursued § 87(2)(b) on foot.

As § 87(2)(b) was running, he was holding his right hand in a stationary position on his waistband area. Lt. Rivera could not tell if § 87(2)(b) was carrying something or if his body was keeled over as he was running. Lt. Rivera suspected that § 87(2)(b) might have had something. § 87(2)(b) ran approximately four houses north on § 87(2)(b) and he took a left into an alleyway. As he did this, Lt. Rivera chased § 87(2)(b) into the alleyway and yelled at him, “Police, Police,” and “Show me your hands.” § 87(2)(b) jumped onto a six to eight foot fence, which was on top of a stone wall that was one to two feet high. Lt. Rivera indicated that the fence separated the alleyway from § 87(2)(b). § 87(2)(b) climbed up to the top of the fence and Lt. Rivera grabbed § 87(2)(b) right leg and held onto him. § 87(2)(b) started wiggling his left leg in an attempt to shake off Lt. Rivera. As this happened, PO Sanchez arrived and grabbed § 87(2)(b) by the left leg. Lt. Rivera and PO Sanchez pulled § 87(2)(b) off the fence and § 87(2)(b) and the officers fell to the ground. As § 87(2)(b) fell, his body twisted he fell on his side, and § 87(2)(b) hit his head against the ground. Lt. Rivera fell to the ground (driveway) on his side. As they were on the ground, § 87(2)(b) kicked his legs towards the officers. Lt. Rivera and PO Sanchez grabbed § 87(2)(b) arms and attempted to place his hands behind his back to rear cuff him but § 87(2)(b) was pulling them underneath his chest. Lt. Rivera stated that he did not have to use any other physical force to get § 87(2)(b) into handcuffs. Lt. Rivera and PO Sanchez were eventually able to rear cuff § 87(2)(b) by themselves. Lt. Rivera did not observe any injuries on § 87(2)(b) in the alleyway because it was dark. Lt. Rivera and PO Sanchez escorted § 87(2)(b) out of the alleyway. At this point, four marked police cars arrived on scene and Lt. Rivera ordered them to check the vehicle that § 87(2)(b) had fled from. Nothing was recovered from the vehicle but it was discovered that § 87(2)(b) daughter was in the backseat.

Lt. Rivera was shown the arrest photo of § 87(2)(b) § 87(2)(b) and asked if he saw any injuries on § 87(2)(b) and he stated that he never observed the injuries. Lt. Rivera was never informed as to how § 87(2)(b) sustained his injuries.

Lt. Rivera or another officer never yelled at § 87(2)(b) “Stop or we are going to shoot.” Lt. Rivera stated that he drew and pointed his gun at § 87(2)(b) when he saw him running in the alleyway with his arm tucked away in his waistband. Lt. Rivera pointed the gun at § 87(2)(b) because he wanted to see what he had in his hands and if § 87(2)(b) turned around he would be ready. Lt. Rivera never made any mention of Lt. Lyons exiting the car or being involved in physically restraining § 87(2)(b). Lt. Rivera stated that he holstered his weapon prior to grabbing § 87(2)(b) leg because he realized that he did not have a weapon because he was climbing over a fence. Lt. Rivera and PO Sanchez never dragged § 87(2)(b) across the ground. They never elbowed him in the back, or kicked and punched him in the ribcage. Lt. Rivera and PO Sanchez never threatened to use force against § 87(2)(b). PO Sanchez never said to § 87(2)(b) “You stupid motherfucker. I should kill you.” PO Sanchez and Lt. Rivera never struck § 87(2)(b) in the with a firearm. Lt. Rivera did not know if PO Sanchez had his gun drawn.

Through subsequent investigation, it was discovered that the owner of the vehicle had left his keys in the ignition, stopped the car, and ran into a store to purchase something. § 87(2)(b) walked by the car with his daughter, stole the car, and strapped his daughter into the backseat.

PO Marcos Sanchez provided a statement on March 13, 2008, (Encl. 10A-C) § 87(2)(g)

According to PO Sanchez, he remained in the car after § 87(2)(b) initially fled from the police. PO Sanchez predicted that § 87(2)(b) was driving 50 to 60 miles per hour when he was driving northbound on § 87(2)(b). When § 87(2)(b) crashed on the southwest corner of § 87(2)(b) and § 87(2)(b), Lt. Lyons was driving towards the intersection, approximately 200 feet away from the crash. PO Sanchez stated that the intersection was illuminated by street lights but he was not able to see if § 87(2)(b) had sustained any injuries because the police car was too far away from § 87(2)(b) when he exited the vehicle. When he arrived at the intersection, PO Sanchez opened the rear passenger door and exited the vehicle so he was approximately 30 feet from § 87(2)(b). PO Sanchez said to § 87(2)(b) "Police! Police! Don't move." § 87(2)(b) placed both hands inside of his jacket, and ran northbound on § 87(2)(b). As he was running, § 87(2)(b) kept his right hand stationary on his waistband area (ran in this manner the entire time). PO Sanchez believed that § 87(2)(b) might have had a weapon. As he was chasing § 87(2)(b), PO Sanchez repeatedly told him to stop but he never did. PO Sanchez chased § 87(2)(b) northbound for approximately two city blocks. PO Sanchez stated the closest he got was within 20 to 30 feet of § 87(2)(b). Lt. Lyons stopped the car at an alleyway and § 87(2)(b) took a left and ran into the alleyway, followed by Lt. Rivera. Lt. Lyons then drove his car northbound and took a left and drove to where the alleyway ended on § 87(2)(b). When PO Sanchez took a left into the alleyway, § 87(2)(b) was attempting to climb over a fence but Lt. Rivera was holding his right leg with two arms. PO Sanchez ran and grabbed § 87(2)(b) by his left leg, which he was using to try to kick Lt. Rivera with. The combined weight of PO Sanchez and Lt. Rivera pulling on § 87(2)(b) caused him to fall from the fence. § 87(2)(b) upper body struck the top of a stone wall that protruded from the base of the fence and he tumbled to the ground. § 87(2)(b) started punching and kicking PO Sanchez and Lt. Rivera. § 87(2)(b) was placed in handcuffs by Lt. Rivera and PO Sanchez. Lt. Rivera ordered two uniformed officers who arrived as backup to take § 87(2)(b) out of the alleyway.

After this, PO Sanchez responded back to § 87(2)(b) and § 87(2)(b) and observed the scene of the crash. PO Sanchez stated that there was a § 87(2)(b) baby in the back of the car in a car seat. Someone called for an ambulance. PO Sanchez then searched the cars for weapons and recovered none. When PO Sanchez opened the driver's door he observed blood on top of the steering wheel. PO Sanchez stated that the air bag did not deploy.

When PO Sanchez arrived at the stationhouse, § 87(2)(b) was standing near the front desk. PO Sanchez observed a cut or a scratch on § 87(2)(b) forehead which was bloody. § 87(2)(b) complained to PO Sanchez § 87(2)(b) and PO Sanchez informed a supervisor. The supervisor then called an ambulance and § 87(2)(b) was brought to a hospital.

PO Sanchez did not notice if Lt. Rivera had his gun drawn. PO Sanchez never struck § 87(2)(b) in the face with a firearm. PO Sanchez stated that § 87(2)(b) crashed into parked cars. PO Sanchez never mentioned Lt. Lyons ever bumping § 87(2)(b) vehicle with his vehicle. PO Sanchez did not use any physical force against § 87(2)(b) besides pulling him off the fence and placing him into handcuffs. PO Sanchez was asked if he dragged § 87(2)(b) against the ground and he responded, "That's when we pulled him down." PO Sanchez never elbowed § 87(2)(b) in the back. PO Sanchez did not see Lt. Rivera elbow § 87(2)(b) in the back. PO Sanchez or Lt. Rivera never kicked § 87(2)(b) in the back and they never punched him in the ribcage. PO Sanchez never threatened to use force against § 87(2)(b). PO Sanchez never called § 87(2)(b) "A stupid motherfucker." PO Sanchez never threatened to kill § 87(2)(b) and he never heard Lt. Rivera do this. PO Sanchez never pointed his gun at § 87(2)(b) and he never saw Lt. Rivera point his gun at § 87(2)(b).

Criminal Complaint Report and Arrest Report for § 87(2)(b) Completed by PO Jonathan Korabel on March 17, 2007 (Encl. 12-13):

On March 17, 2007, § 87(2)(b) stated that at 10:43 PM § 87(2)(b) took his Toyota Land Cruiser without authority or permission. § 87(2)(b) drove recklessly on public streets in an attempt to flee causing public alarm from the police. § 87(2)(b) left his § 87(2)(b) daughter in the rear seat of the stolen vehicle, which estimated value is over \$100 of U.S currency. § 87(2)(b) flailed his arms and legs in an attempt to avoid being handcuffed. § 87(2)(b) was searched in lieu of arrest and a bag of marijuana was recovered off his person. The complaint was classified as a Grand Larceny Auto. § 87(2)(b) was charged

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physical condition was listed as injured and it stated that he was treated and released.

Sgt. Jonathan Korabel (PO During the time of his interview) provided the following statement to the CCRB on August 21, 2007 (Encl.)::

Sgt. Korabel was interviewed at the CCRB on August 21, 2007. Sgt. Korabel is a white male § 87(2)(b) has brown hair and green eyes. Sgt. Korabel wears glasses. Sgt. Korabel was a PO at the time of incident and was assigned to the 44th Precinct Anti-Crime team. He worked a 1730x0205 tour on March 17, 2007 with Sgt. Michael Gaudio. They were in plainclothes and assigned to an unmarked green Crown Victoria.

On March 17, 2007, at approximately 10:54 PM Central put over a call regarding a stolen vehicle. A sector car picked up the call, spoke to the car's owner, and then put over a description of the vehicle, including the plate number. Very shortly after that, the other anti-crime team (PO Marcos Sanchez, Lt. Rivera, and Lt. Lyons) put over that they were involved in a foot pursuit with the perpetrator who had stolen the car. PO Korabel started driving to the location. It had snowed either that day or the day before, and it took a bit of time to get there due to the snow and sleet in the street. There were already several marked cars in front of § 87(2)(b) by the time PO Korabel and Sgt. Gaudio arrived. PO Sanchez was leading § 87(2)(b) out from behind the house. § 87(2)(b) was already handcuffed. PO Korabel did not believe § 87(2)(b) was injured. PO Sanchez told PO Korabel what happened, § 87(2)(g). PO Korabel did not think that any officers were injured while handcuffing § 87(2)(b).

PO Korabel took the arrest. He believed he transported § 87(2)(b) to the stationhouse, but wasn't entirely sure. At the stationhouse, PO Korabel advised § 87(2)(b) of his Miranda rights. § 87(2)(b) stated "I know this car wasn't mine." PO Korabel believed that EMS was called to examine § 87(2)(b). PO Korabel believed this because the car accident had been so serious. Both EMS and ACS were called regarding § 87(2)(b) § 87(2)(b) daughter.

Somewhere along the way, PO Korabel found out the owner of the vehicle (name unrecalled) left the keys in the ignition and the car running while he went into a store. § 87(2)(b) saw this and took the car. There was already a car seat in the car. PO Korabel was almost certain that § 87(2)(b) did not know the man who owned the car; regardless, the car owner agreed to prosecute § 87(2)(b) § 87(2)(b).

Accident Report for § 87(2)(b) Completed by PO Jose Reyna (Encl. 15A-C):

On March 17, 2007, § 87(2)(b) caused a five car accident at § 87(2)(b) and § 87(2)(b) in the Bronx. No one was killed or injured.

PO Jose Reyna provided the following statement to the CCRB on August 22, 2007 (Encl. 16A-C):

PO Jose Reyna was interviewed at the CCRB on August 22, 2007. PO Reyna is a Hispanic male § 87(2)(b). He worked a 1500x2335 tour with an officer identified by the roll call as PO Robert Meyer. PO Reyna was filling in for PO Meyer's regular partner. The two were assigned to Sector AB. It was cold that night and the streets were slippery. At approximately 10:50 PM, Central put over a job regarding a stolen car in Sector AB. PO Reyna and his partner picked up the job and went to speak to the complainant. The man explained that he left his car running with the keys in the ignition while he ran into a bodega to buy aspirin for his daughter. When he came back out, his car was gone. The man provided the plate number and the description of the car. PO Meyer put this information over the radio as the man provided it.

Less than one minute later, one of the unmarked units (either SNEU or anti-crime) put over the radio that they had spotted the car. PO Reyna was surprised to hear that the perpetrator § 87(2)(b) § 87(2)(b) was only a block or so away from the scene of the crime. The team then put over that the § 87(2)(b) § 87(2)(b) was trying to get away, and then that the § 87(2)(b) § 87(2)(b) had crashed the car into some parked cars and was fleeing on foot. PO Reyna heard all of this over the radio. He and his partner drove to the scene and saw that the stolen vehicle had crashed while turning into the first parked car on the corner. The accident was severe: the stolen car was on top of the parked car it hit, and the first few parked cars on the block had been pushed back into each other as a result of the impact. PO Reyna described it as a "five car pileup."

§ 87(2)(b) § 87(2)(b) had fled the car crash and run all the way down the block. A plainclothes unit, identified by the investigation as an anti-crime unit consisting of Lt. Rivera, Lt. Lyons, and PO Sanchez caught up with him behind one of the houses on the block. § 87(2)(b) § 87(2)(b) was handcuffed and escorted out of the alleyway. PO Reyna could not recall if the man, identified by the investigation as § 87(2)(b) § 87(2)(b) was bleeding or not. He said it was possible, especially given that § 87(2)(b) § 87(2)(b) had just been in a pretty serious car accident. § 87(2)(b) § 87(2)(b) appeared relatively calm.

The officers looked in the parked car and were shocked to find an infant in a car seat in the backseat. At this point, several bosses, including commanding officer Captain Emilio Melendez, were called to the scene. An ambulance was called for the baby, who turned out to be alright. PO Reyna filled out the Police Accident Reports (PARs) for the parked cars that had been hit and a DARP (Directed Accident Response Program) for the stolen car, which had been badly damaged and was towed away.

PO Reyna never had any physical contact with § 87(2)(b) § 87(2)(b). He never saw any other officer use any force against § 87(2)(b) § 87(2)(b). At some point, PO Reyna found out that the vehicle owner did not know § 87(2)(b) § 87(2)(b) and did not give him permission to use his car. PO Reyna also found out how the child came to be in the car; § 87(2)(b) § 87(2)(b) stole the car, drove to his house, picked up his child and her car-seat, put her in the car, and continued driving.

Officers not Interviewed:

§ 87(2)(g)
§ 87(2)(g)

Medical Records:

§ 87(2)(b) § 87(2)(b) had no medical records for § 87(2)(b) § 87(2)(b) for a visit between § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b).

NYPD Documents:

Sprint Print-Out (Encl. 18A-G):

PO Marcos Sanchez has had no allegations substantiated against him in the past. Lt. Phillip Rivera had an allegation of searching a person and abuse-other substantiated against him in CCRB case 9801122. The police department recommended charges and he received command discipline B. Lt. Joseph Lyons had an allegation of refusal to provide his name and shield number substantiated against him in CCRB case 200307469. The police department recommended charges and he received command discipline A. § 87(2)(b)

Recommendations and Conclusions

Undisputed Facts:

It is not disputed that Lt. Rivera pointed his gun at § 87(2)(b). Officers used physical force to place § 87(2)(b) under arrest. § 87(2)(b) daughter was discovered in the back of the car when he was arrested. § 87(2)(b) was transported to the 44th Precinct stationhouse, where he complained of pain and injury and he was taken to § 87(2)(b).

Disputed Facts:

§ 87(2)(g)

Assessment of Evidence:

§ 87(2)(b) denied that he stole a Toyota Land Cruiser and stated that he borrowed it from an acquaintance named § 87(2)(b). According to Complaint Report § 87(2)(b), the complainant, § 87(2)(b) stated that his car was taken by § 87(2)(b) without authority or permission. § 87(2)(g)

According to § 87(2)(b) he stopped at an unknown intersection and started driving when the light turned green. As he started to drive through the intersection, a black police car hit his rear bumper, which caused the car to veer into the oncoming lane and crash into a parked car. Lt. Rivera and PO Sanchez stated that § 87(2)(b) fled from the police when they tried to stop him upon exiting their car and approaching the Land Cruiser. As they did this, they got involved in a high speed car chase, which culminated in § 87(2)(b) crashing into multiple parked cars, creating a pile up at the intersection of § 87(2)(b) and § 87(2)(b). The Sprint Print-Out for the incident indicates that DARP (Directed Accident Response Program) was requested for three vehicles involved in the accident. An accident report, completed by PO Jose Reyna, revealed that there were five vehicles involved in the automobile accident. § 87(2)(g)

§ 87(2)(b) stated that he walked away from his car and then recanted his statement and said that he went to the back seat to get his daughter out of the car. § 87(2)(b) alleged that Lt. Rivera pointed his gun at him and said to him, "Stop or we're going to shoot." All of the officers interviewed stated that § 87(2)(b) fled on foot and was eventually caught by PO Sanchez and Lt. Rivera. PO Sanchez and Lt. Rivera stated that when § 87(2)(b) got in a car crash they saw him exit the Land Cruiser, reach into the back, and then take off running with his right hand stationary on his waistband area. § 87(2)(b) arrest report stated he was arrested at § 87(2)(b) which is more than half a block north of § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) § 87(2)(b) alleged that Lt. Rivera and PO Sanchez kicked him approximately five times and punched him five times on his back, rib cage, and butt. § 87(2)(b) § 87(2)(b) also alleged that Lt. Rivera and PO Sanchez dragged him across the ground which caused him to injure his hand, which required five stitches. § 87(2)(b) § 87(2)(b) also alleged that an officer struck him in the face with a firearm. Lt. Rivera and PO Sanchez, who caught § 87(2)(b) § 87(2)(b) and handcuffed him, stated that he ran down an alleyway and tried to jump over a fence but they grabbed his legs and he fell to the ground chest first from a fence that was approximately 8 feet high and started fighting the officers. According to an arrest report completed by PO Korabel, § 87(2)(b) § 87(2)(b) ran from the police and flailed his arms and legs in order to prevent arrest. § 87(2)(b) § 87(2)(b) arrest photo shows that he had a laceration above and under his left eye, bruises to his face, and a swollen left eye. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) alleged that an officer said to him, “Stupid motherfucker.... I should kill you.” PO Sanchez and Lt. Rivera denied using any profanity against § 87(2)(b) § 87(2)(g)

Allegations not Pleaded:

§ 87(2)(g)

Allegation (A): Lt. Joseph Lyons’ vehicle struck the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) § 87(2)(b) alleged that Lt. Lyons struck the back of the Land Cruiser that he stole with his police vehicle. Both Lt. Rivera and PO Sanchez, who were in the police vehicle that Lt. Lyons was driving, stated that § 87(2)(b) § 87(2)(b) crashed into a row of parked cars and they never mentioned Lt. Lyons ever striking § 87(2)(b) § 87(2)(b) vehicle. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation A be **unfounded**.

Allegation (B): Lt. Philip Rivera pointed his gun at § 87(2)(b)

§ 87(2)(b) § 87(2)(b) alleged that Lt. Philip Rivera pointed his gun at him. Lt. Rivera admitted that he pointed his gun at § 87(2)(b) § 87(2)(b) because § 87(2)(b) § 87(2)(b) was running in the alleyway with his arm tucked in his

waistband. Lt. Rivera pointed the gun at § 87(2)(b) because he wanted to see what he had in his hands and if § 87(2)(b) turned around he would be ready. In *PD vs. Gliner* the court addressed an officer's discretion in pointing his or her gun and held that, "The department permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered. The determination as to when that exercise of discretion rises to the level of misconduct must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances (Encl. 1A-D)." § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation B be **exonerated**.

Allegation (C): Lt. Philip Rivera used physical force against § 87(2)(b)

Allegation (D): PO Marcos Sanchez used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Lt. Philip Rivera and PO Marcos Sanchez kicked him five times and punched him five times in the back, rib cage, and butt. § 87(2)(b) also alleged that the officers pulled on his legs and clothes and dragged him along the ground, which resulted in an injury to his knee and an injury requiring four stitches to his hand. Lt. Rivera and PO Sanchez stated that they grabbed § 87(2)(b) by his legs as he was trying to climb over a fence that was approximately eight feet high and that his body fell to the ground chest first. Upon landing on the ground, § 87(2)(b) threw punches and kicked at PO Sanchez and Lt. Rivera. According to New York State Penal Law 35.30 (Encl. 1E-G), "A police or peace officer, in the course of effecting or attempting to effect an arrest, or of preventing or attempting to prevent escape from custody, of a person whom he reasonably believes to have committed an offense, may use physical force when and to the extent he reasonably believes such to be necessary to effect the arrest." § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations C and D be **exonerated**.

Allegation (E): An officer spoke obscenely and rudely to § 87(2)(b)

Allegation (F): An officer threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) alleged that when he was on the ground getting hit he cradled his arms to protect his face. As he did this, an officer allegedly said, "Stupid motherfucker, I should kill you." § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations E and F be **unfounded**.

Allegation (G): An officer struck § 87(2)(b) **with a gun.**

§ 87(2)(b) § 87(2)(b) alleged that an officer pistol whipped him in the face with a gun when he was handcuffed, but he was unable to identify the officer. According to his account § 87(2)(b) § 87(2)(b) stated an officer was standing near him and he was then struck in the head in with a gun, but he did not attribute this force against that officer. In his statement § 87(2)(b) § 87(2)(b) claimed that this officer helped to apprehended him, which only PO Sanchez and Lt. Rivera partook in. § 87(2)(g)

§ 87(2)(b) Lt. Rivera and PO Sanchez § 87(2)(b) § 87(2)(b) denied that § 87(2)(b) § 87(2)(b) was struck in the face with a gun. § 87(2)(g)

§ 87(2)(b) It is recommended that Allegation G be **unfounded** § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: